

24AVCV01165 24AVCV01165

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-28

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Case Number: 24AVCV01165 Hearing Date: August 28, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

DIANA AYALA, an individual,

Plaintiff,

v.

PALMDALE REGIONAL MEDICAL CENTER, an unknown entity; LANCASTER HOSPITAL CORPORATION, a California corporation; and DOES 1 through 50, inclusive,

Defendants.

Case Number 24AVCV01165

[TENTATIVE]

RULING ON DISCOVERY MOTIONS

Date of Hearing: August 28, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury and premises liability case, arising from Plaintiff Diana Ayala (Plaintiff) slipping and falling while lawfully on the premises owned by Lancaster Hospital Corporation, dba Palmdale Regional Medical Center (Defendant) on September 18, 2023.

On September 17, 2024, Plaintiff filed a complaint against Defendant, asserting two causes of action for general negligence and premises liability.

On January 9, 2025, Defendant filed an answer to the complaint.

On June 22, 2026, Defendant filed five motions to compel (1) further responses to supplemental pre-trial interrogatories, (2) further responses to request for production of documents, set two, (3) further responses to supplemental pre-trial request for production, (4) further responses to supplemental pre-trial form interrogatories, and (5) further responses to special interrogatories, set two.

On August 4, 2026, the Court granted Defendant's ex parte application to advance the date for hearing on Defendant's motions to compel and set the matters for August 28, 2026.

On August 17, 2026, Plaintiff filed her oppositions.

On August 21, 2026, Defendant filed its replies.

II. Preliminary Procedural Issues

Meet and Confer – A motion to compel further responses must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).)

Defense counsel has set forth sufficient information for all five motions that meet and confer efforts occurred to informally resolve the discovery disputes with Plaintiff's counsel, but that no resolution was reached. The Court finds this requirement satisfied.

Date of Hearing for Motion to Compel Further Responses to Supplemental Pre-Trial Form Interrogatories – Defendant's ex parte application to advance and hear all five pending discovery motions on the same date was granted on August 4, 2026 in full in the absence of any opposition from Plaintiff. However, it appears due to inadvertence or mistake of the Court that the Motion to Compel Further Responses to Supplemental Pre-Trial Form Interrogatories was not continued to August 28, 2026 to be heard on the same date as the four other motions to compel at issue. Thus, the Motion is still set for hearing on October 6, 2026.

However, Plaintiff has filed a substantive opposition to this motion, and Defendant has filed a reply. On review of the ex parte application, the August 4, 2026 Minute Order granting the application, and the opposition and reply papers of the parties, it appears clear that the Court's and parties' intent was to advance the hearing date on this motion to have all five motions to compel heard on the same date. The motion has been fully briefed and both parties appear prepared and under the impression that the motion will be heard on August 28, 2026. Accordingly, the Court will advance the hearing on the Motion to August 28, 2026 to be heard concurrently with Defendant's four other discovery motions.

III. Legal Standard

Standard for Motions to Compel Further Discovery Responses - Interrogatories – In responding to a set of interrogatories, a party must provide one of the following: (1) an answer “containing the information sought to be discovered”; (2) “an exercise of the party’s option to produce writings”; or (3) an objection to the particular interrogatory. (Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an interrogatory “shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220, subd. (a).) If any objections are made, “the specific ground for the objection shall be set forth clearly in the response.” (Code Civ. Proc., § 2030.240, subd. (b).)

Upon receipt of responses to interrogatories, the propounding party may move for an order compelling further responses if they deem the responses to be “evasive or incomplete” or if “[a]n objection to an interrogatory is without merit or too general.” (Code Civ. Proc., §§ 2030.300(a)(1), (a)(3).) A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) The motion must also be accompanied by a separate statement containing the text of the interrogatories at issue, the text of each response at issue, and a statement of the reasons why a further response is required, though the court may permit a party to submit “a concise outline of the discovery request and each response in dispute” in lieu of a separate statement. (Code Civ. Proc., § 2030.300, subd. (b)(2); Cal. Rules of Court, rule 3.1345.)

A motion to compel further response lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (Code Civ. Proc., § 2030.300.) Unlike a motion to compel further responses to a request for production, there is no “good cause” requirement applicable to a motion to compel further responses to interrogatories. “The ruling usually is based on consideration of the following factors: the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Weil, et al., Cal. Prac. Guide, Civil Procedure Before Trial, Ch. 8F-7, ¶ 8:1181; see also *Columbia Broadcasting System, Inc v. Superior Court* (1968) 263 Cal.App.2d 12, 18–19 [“[I]n deciding a motion under [former] section 2030 the trial court must, of necessity, consider not only the stated objections to the interrogatories, but also the interrogatories themselves, as well as the pleadings, and the contentions of the interrogating party as to the purpose and validity of the interrogatories. If the interrogatories stray too far and seek information which cannot reasonably serve the acknowledged purposes of pretrial discovery, the motion should be denied.”].) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220–221.)

If a party fails to serve a timely response to interrogatories, the party waives the right to exercise the option to produce writings under Section 2030.230 and waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a)(1)-(2).)

Standard for Motions to Compel Further Discovery Responses – Requests for Production of Documents – Motions to compel further responses to requests for production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224 (disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531).)

A demanding party may move for an order compelling further response to RPDs if (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

If a party fails to serve a timely response to a request for production, the party waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a)(1)-(2).)

IV. Discussion

Application – Defendant moves to compel Plaintiff's (1) further responses to supplemental pre-trial interrogatories, (2) further responses to request for production of documents, set two, (3) further responses to supplemental pre-trial request for production, (4) further responses to supplemental pre-trial form interrogatories, and (5) further responses to special interrogatories, set two.

The factual background relevant to and discussed in all five motions is set forth by Defendant as follows:

Defendant served discovery on Plaintiff on March 18, 2026, with responses due on or before April 17, 2026. On April 13, 2026, Plaintiff requested a two week extension to respond, and Defendant agreed to extend the deadline to April 24, 2026. Plaintiff served responses on April 21, 2026, and any motion to compel further responses was due on or before June 5, 2026. On May 20, 2026, Defense counsel sent a meet and confer letter to Plaintiff's counsel identifying deficiencies in the discovery responses, advising counsel of Defendant's intent to file a motion to compel, and providing Plaintiff one week to serve additional responses. On May 26, 2026, Plaintiff's counsel requested a one week extension to respond to the meet and confer letter. Defense counsel agreed to agree to the extension and in return Plaintiff's counsel agreed to a two-week extension of Defendant's deadline to file a motion to compel. Based on the agreement of counsel, Plaintiff's deadline to respond was June 3, 2026 and the deadline for Defendant to file a motion to compel was June 19, 2026. (See Razo Decls., ¶¶ 1-10, Exs. A-F.)

Defendant asserts that Plaintiff has not responded to meet and confer correspondence or served supplemental responses, and Defendant brought the five motions to compel. In opposition to all five motions, Plaintiff asserts the motions are now moot and should be denied, as Plaintiff provided further substantive responses to all requests on June 29, 2026.

a. Supplemental Pre-Trial Special Interrogatories

Defendant moves to compel Plaintiff's further responses to the supplemental pre-trial interrogatories served on March 18, 2026 pursuant to Code of Civil Procedure section 2030.300 and 2030.070 on the grounds that Plaintiff, without justification, failed to serve proper responses. (Motion, p. 2:2-9.)

Code of Civil Procedure section 2030.070 states that in addition to interrogatories otherwise permitted, a party may propound a supplemental interrogatory once after the initial setting of a trial date to elicit any later acquired information bearing on answers previously made by a party in response to interrogatories. (Code Civ. Proc., § 2030.070, subd. (a)-(b).)

The supplemental request served on Plaintiff reads: "PLEASE TAKE NOTICE that pursuant to Section 2030.070 of the California Code of Civil Procedure, Plaintiff DIANA AYALA, is required to provide any later acquired information bearing on all answers previously made in response to interrogatories propounded by Lancaster Hospital Corporation dba Palmdale Regional Medical Center under oath, within thirty (30) days of the date of service. Please review your answers to interrogatories previously served on you in this action. If, for any reason, any answer is no longer correct and complete, identify the answer and state whatever information is necessary to make it correct and complete as of this date. You should supply all information known to you, whether in Plaintiff's possession or in the possession of Plaintiff's counsel or other

agent.” (Razo Decl., Ex. B.)

Plaintiff’s response to the supplemental request reads: ““Objection. Vague and ambiguous. Overbroad as to scope and time. Assumes facts not in evidence. Calls for speculation. Premature as Responding Party has not had an adequate opportunity to conduct an investigation in this matter. Compound.” (Razo Decl., Ex. D.)

In opposition, Plaintiff argues the present motion is now moot, as Plaintiff reviewed her responses and appropriately supplemented them on June 29, 2026. Plaintiff also asserts that the parties had not reached a discovery impasse, as Plaintiff had already agreed to supplement her responses, and that the supplemental responses were ultimately provided without Court intervention. (Opp., p. 8-10.) Plaintiff also provides her supplemental responses, which either “refer[] to her response to Form Interrogatory 6.4 and medical records produced in response to Requests for Production, Set One,” or state that “Responding Party has no documents at this time in her custody, control or possession responsive to this request.” (Flores Decl., Ex. A.) Plaintiff’s response to Interrogatory No. 16 does not include any new healthcare providers, but is supplemented with updated charges and treatment dates.

On reply, Defendant argues that the June 29, 2026 supplemental responses provided have not cured every deficiency identified by Defendant, and specifically notes that the responses are not code compliant and that Interrogatory Nos. 6-9 remain incomplete. (Reply, p. 2:7-11.) Defendant notes that Plaintiff failed to disclose a prior slip and fall incident and lawsuit in her discovery responses served in May of 2025, and Defendant only learned of the prior incident during Plaintiff’s deposition on March 5, 2026, which required a second set of discovery to learn additional information, which was served immediately after Plaintiff’s deposition. (Reply, p. 2:12-15.) Defendant notes that No. 6 requests identification of all providers from whom Plaintiff sought treatment for the five years preceding the incident but provided no information prior to 2023, which is inconsistent with her deposition testimony that she was injured in a prior slip and fall incident, injured the same body part at issue here, and that she sought medical treatment for these injuries. (Reply, p. 3:9-14.) Plaintiff’s responses also state in part that no additional records are available, but do not indicate what information is unavailable or what efforts Plaintiff made to obtain it. (Reply, p. 3:14-18; See *Deyo v. Kilbourne* (1978) 84 CA3d 771, 782, 149 CR 499, 509.)

To start, the Court notes that the present motions are not moot. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390 expressly authorizes the Court to hear a motion to compel initial responses even where a party filed untimely responses after the motion to compel was filed but before the hearing. The *Sinaiko* Court reasoned that to accept that a court has no discretion to hear and rule on a motion to compel initial responses after untimely responses are provided “would remove an important incentive for parties to respond to discovery in a timely fashion” and “a party to whom interrogatories were directed could wait until the hearing on a section 2030.290 motion was imminent, then serve a set of evasive and incomplete responses, and thereby unilaterally deprive the trial court of authority to hear the motion.” (*Sinaiko*, supra, 148 Cal.App.4th at 408.) Therefore, “once a party has failed to serve timely [discovery] responses, the trial court has the authority to hear a propounding party’s motion to compel responses... regardless of whether a party serves an untimely response.” (*Ibid.*)

The *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 echoed *Sinaiko*’s reasoning in holding the same as to motions to compel further responses, stating that to adopt such an “interpretation of the discovery act—that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim—would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal supplementation.”

The Court also rejects Plaintiff’s argument that there is no discovery dispute and a hearing on the matter is unwarranted because Plaintiff never refused to provide supplemental responses and she did so 10 days after the filing of this motion. Plaintiff’s initial responses were unquestionably not code-compliant and reflect a complete lack of effort to comply with the requests as required. That Plaintiff agreed to provide supplemental responses at some point is not sufficient to evade her responsibilities under the Civil Discovery Act.

The Court finds that Plaintiff’s initial response was unequivocally non-compliant, and that Plaintiff’s June 29th supplemental responses are incomplete, evasive, and raise meritless objections. This is particularly so in light of Plaintiff’s deposition

testimony and her recent disclosure of a slip and fall incident, in which she purportedly suffered injuries to the same parts of the body, sought medical treatment, and for which she subsequently filed suit.

Defendant's motion is GRANTED and Plaintiff shall review and supplement all Special Interrogatories with code-compliant, accurate, and non-evasive responses. The Court notes that Defendant agreed to an extension for the deadline to serve initial responses, and while Plaintiff's initial response was entirely deficient, it was timely. Therefore, Plaintiff has not waived her right to object. However, the Court admonishes Plaintiff and her counsel from asserting frivolous and meritless objections to discovery requests which are clearly reasonable, related to the case, and seek information which exists and is not privileged. Any objections must be justified and code-compliant.

b. Request for Production of Documents, Set Two

Defendant moves to compel Plaintiff's further responses to the supplemental pre-trial interrogatories served on March 18, 2026 pursuant to Code of Civil Procedure section 2031.310 on the grounds that Plaintiff, without justification, failed to serve proper responses. (Motion, p. 2:2-9.)

Code of Civil Procedure section 2031.310, subdivision (a) permits a party to move for an order compelling further response if (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. The motion must set forth specific facts showing good cause to justify the discovery sought and be filed with a separate statement required by the Rules of Court. (Code Civ. Proc., § 2031.310, subd. (b).)

Defendant argues Plaintiff's responses fail to comply with the requirements of a statement of compliance because Plaintiff merely objected to all requests. A statement that the party to whom a demand for production has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production. (Code Civ. Proc., § 2031.220.)

Defendant also argues that Plaintiff has failed to establish an inability to comply with the request and that her responses failed to state a reason why she cannot comply or identify any persons or organizations which have or are believed to have possession, custody, or control of the requested items. "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.)

Finally, Defendant asserts good cause exists for compelling further responses, as each of the requests directly concern causation and damages, which are central contested issues in this litigation, and all documents requested are directly relevant to Plaintiff's claims. (Motion, p. 7:17-24.) Defendant asserts it seeks the requested items for the purposes of evaluating the full scope of Plaintiff's asserted damages, to provide complete and accurate information to its retained experts so they may render informed opinions, and to engage in meaningful, good faith settlement negotiations or otherwise prepare a defense for trial. (Motion, p. 7:25-28.) Defendant asserts it is materially prejudiced and will be forced to blindly litigate causation and damages without production. (Motion, p. 8:1-3.)

At issue are Plaintiff's responses to request numbers 13 through 19. The requests include documents relating to all lawsuits, claims, and disputes involving Plaintiff where the subject matter, claims, or parties are substantially similar to the claims in the present case, all documents related to any lawsuits, claims, or disputes referenced in Form Interrogatory 10.3, documents related to personal injury or worker's compensation claims filed by Plaintiff after the date of the underlying incident, medical records, bills, and reports relating to any injury for which Plaintiff sought treatment before or after the incident involving any

part of the body Plaintiff claims is injured, medical records, bills, and reports relating to any injury or condition for which Plaintiff sought medical care after her 2017 slip and fall referenced in Plaintiff's deposition, the same for a car accident involving Plaintiff on December 13, 2024, and documents relating to payments or settlements received by Plaintiff in connection with any workers' compensation claim. (Razo Decl., Ex. B.)

All of Plaintiff's responses consisted of some combination of the following objections: "Vague and ambiguous. Overbroad as to scope and time. Assumes facts not in evidence. Calls for speculation. Compound. Irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Lacks foundation. Oppressive, unduly burdensome, and harassing. Seeks information protected by privacy rights of Responding Party." (Razo Decl., Ex. D.) Plaintiff did not produce any documents in response to these requests.

In opposition, Plaintiff argues the present motion is moot or unnecessary, as documents were produced on June 29, 2026 in response to Request Nos. 13-14, 16, and 18-19, and a representation of inability to comply with Request Nos. 15 and 17 was served. (Opp., p. 2:9-13.) Plaintiff provides her supplemental responses, which maintain the same objections but indicate that she produced a settlement release agreement and her medical records and bills from the December 13, 2024 car accident case. (Flores Decl., Ex. A.)

On reply, Defendant argues that the June 29, 2026 supplemental responses provided have not cured every deficiency identified by Defendant, and specifically notes that Plaintiff testified that she was involved in a prior slip and fall lawsuit against Winco Foods arising in 2017, a matter squarely within the scope of Defendant's requests, but Plaintiff has not produced anything related to the incident and instead produced only a single settlement release related to a December 13, 2024 car accident, medical records related to that accident, and offered a bare statement that the documents are not in her possession, custody, or control without identifying who has them as required by Code of Civil Procedure Section 2031.230. (Reply, p. 2:7-15.) Defendant notes that Plaintiff failed to disclose this prior slip and fall incident and lawsuit in her discovery responses served in May of 2025, and Defendant only learned of the prior incident during Plaintiff's deposition on March 5, 2026, which required a second set of discovery to learn additional information, which was served immediately after Plaintiff's deposition. (Reply, p. 2:16-20.)

Defendant specifically points to Request No. 13 as an example of Plaintiff's evasion of discovery. (Reply, p. 3:3-7.) Request No. 13 reads: "Please produce all documents, including but not limited to pleadings, court orders, settlement agreements, correspondence, and witness lists relating to any lawsuits, claims, or disputes involving YOU where the subject matter, claims, or parties are substantially similar to the claims in the present case, from 2015 to present." (Razo Decl., Ex. B.) Plaintiff's supplemental response reads: "Objection. Vague and ambiguous. Overbroad as to scope and time. Assumes facts not in evidence. Calls for speculation. Compound. Irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Lacks foundation. Oppressive, unduly burdensome, and harassing. Without waiving the foregoing objections: Responding Party will produce documents responsive to this request – Settlement Release Agreement. Discovery and investigation are ongoing. Responding Party reserves the right to amend and/or supplement this response." (Flores Decl., Ex. A, p. 3:21-28.) Defendant argues this response is deficient because Plaintiff knowingly fails to produce, identify, or address any responsive documents related to the previously undisclosed 2017 slip and fall case identified by Plaintiff in her deposition and fails to provide a code-compliant representation of inability to comply. (Reply, p. 3:11-17.) Defendant further argues the responses to Nos. 13-14, 16, and 18-19 remain deficient because Plaintiff testified she received medical treatment for the prior slip and fall, completely excluded all related records from her responses with no explanation for their omission, does not state she is unable to comply with the request, does not explain where the documents are, identify who has or may have them, or whether they were lost, destroyed, or unavailable, and the general statement that discovery is ongoing is not a substantive response. (Reply, p. 4:1-22.)

The Court finds that Plaintiff's supplemental responses are deficient, evasive, non-code compliant, and that good cause exists to compel the production of the responses and documents sought by Defendant. Plaintiff testified to a prior slip and fall incident for which she brought suit, injured the same body parts as were allegedly injured in this case, and sought medical treatment. Defendant asserts the existence of this incident was not disclosed until Plaintiff's deposition in March of this year and was omitted entirely from all prior discovery responses. Plaintiff again has omitted any and all documentation or information related to this incident, and neither her supplemental responses nor her opposition to this motion put forth any justification for withholding all information sought. Plaintiff's responses do not even address this incident.

Accordingly, Defendant's motion is GRANTED. Plaintiff shall serve non-evasive, accurate, and code-compliant supplemental responses, including a code-compliant statement of inability to comply where applicable, identifying all persons or entities who have or may have the requested documentation. The Court again admonishes Plaintiff and her counsel from asserting meritless and unsupported objections to these requests.

c. Supplemental Pre-Trial Request for Production

Defendant moves to compel Plaintiff's further responses to the supplemental pre-trial requests for production served on March 18, 2026 pursuant to Code of Civil Procedure sections 2031.310 and 2031.050 on the grounds that Plaintiff, without justification, failed to serve proper responses. (Motion, p. 2:2-9.)

Code of Civil Procedure section 2031.050 states that in addition to demands for production otherwise permitted, a party may propound a supplemental demand once after the initial setting of a trial date to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made. (Code Civ. Proc., § 2030.070, subd. (a)-(b).)

Defendant reiterates its argument that good cause exists to compel Plaintiff's production of documents and supplemental responses. (Motion, p. 6:17-28.)

The supplemental request served on Plaintiff requested the following categories of documents other than those previously provided: a copy of all updated documents, photographs, videotapes, or other tangible evidence supporting Plaintiff's contentions against Defendant, claims for past medical expenses, claims for future medical expenses, future and special damages, updated tangible evidence of Plaintiff's physical or mental injuries caused by Defendant's alleged negligence, later acquired evidence bearing on any answer or response previously made in response to previous requests for production, all documents showing payment made by any person other than Plaintiff towards the medical expenses incurred with the underlying incident, and all documents establishing amounts paid or payable as a result of the incident. (Razo Decl., Ex. B.)

Defendant again responded with only objections, including: "Objection. Vague and ambiguous. Overbroad as to scope and time. Seeks premature expert opinion. Calls for speculation. Compound. Premature as Responding Party has not had an adequate opportunity to conduct an investigation in this matter. Calls for a legal conclusion. Assumes facts not in evidence. This interrogatory improperly seeks to circumvent Code of Civil Procedure section 2030.070. This request contains subparts and does not separately set forth and designate each individual item requested in violation of Code of Civil Procedure section 2031.030."

Plaintiff again argues that this motion is moot on the basis that she provided supplemental responses and updated information and documents to Request Nos. 1, 3, 4, 5, 9, 11, and 12 on June 29, 2026 after reviewing her prior discovery responses. (Opp., p. 3:14-18.) Plaintiff's supplemental response indicates that Plaintiff produced additional medical records related to this case. (Flores Decl., Ex. A.)

On reply, Defendant argues that the June 29, 2026 supplemental responses provided have not cured every deficiency identified by Defendant, and specifically argues that Plaintiff's supplemental responses to previous requests for production failed to include information regarding other claims, injuries, or medical treatment, particularly related to the slip and fall incident discussed herein. (Reply, p. 2:7-15.) Defendant notes that Plaintiff failed to disclose this prior slip and fall incident and lawsuit in her discovery responses served in May of 2025, and Defendant only learned of the prior incident during Plaintiff's deposition on March 5, 2026, which required a second set of discovery to learn additional information, which was served immediately after Plaintiff's deposition. (Reply, p. 2:16-20.)

Defendant further argues that Plaintiff's supplemental responses remain deficient because Plaintiff testified she received medical treatment for the prior slip and fall, completely excluded all related records from her responses with no explanation for their omission, does not state she is unable to comply with the request, does not explain where the documents are, identify who has or may have them, including the providers or facilities that provided care, the identification of which would

permit Defendant to conduct further investigation, or whether they were lost, destroyed, or unavailable, and the general statement that discovery is ongoing is not a substantive response. (Reply, p. 3:17-4:9.)

The Court notes that a majority of the requests within the Supplemental Pre-Trial Request for Production of Documents do not seek documents related to Plaintiff's prior injuries, but rather, focus on medical treatment and evidence related exclusively to the case at hand and support Plaintiff's contentions of Defendant's liability. However, the exceptions are as follows:

1. Request No. 11 – "Please produce all medical reports and records concerning medical care and treatment rendered within the last five (5) years by any and all HEALTH CARE PROVIDERS including but not limited to, physicians, surgeons, hospitals, chiropractors, physical therapists, paramedics, pharmacists, psychologists, psychiatrists and/or mental health professionals to any part of YOUR body or mind YOU claim was injured in the INCIDENT which is the subject of this action."

2. Request No. 12 – "Please produce all DOCUMENTS or WRITINGS, as defined in Evidence Code § 250. identified in your response to Defendant's Interrogatories propounded concurrently herewith."

(Razo Decl., Ex. B.) To the extent that Plaintiff (1) failed to supplement her responses to Defendant's Interrogatories and thereafter failed to supplement production of documents and writings identified in response, and (2) failed to provide medical reports and records concerning medical care and treatment rendered within the last five years to any part of Plaintiff's body that she claims was injured in the underlying incident, the Court finds Plaintiff's responses evasive and incomplete. To the extent that Plaintiff relies on "ongoing discovery" and does not declare that after reasonable search and diligent inquiry no additional responsive documents exist, the remainder of the responses are not code-compliant and are insufficient to establish whether other responsive documents exist. For the reasons set forth by Plaintiff, the Court finds good cause to compel production of the documents requested.

Accordingly, Defendant's motion is GRANTED. Plaintiff shall provide code-compliant responses to Defendant's requests and shall provide any and all available or readily obtainable non-privileged responsive documents to Request Nos. 11 and 12, with production to be consistent with Plaintiff's amended interrogatory responses.

d. Special Interrogatories, Set Two

Defendant moves to compel Plaintiff's further responses to the special interrogatories, set two served on March 18, 2026 pursuant to Code of Civil Procedure sections 2031.310 and 2031.050 on the grounds that Plaintiff, without justification, failed to serve proper responses. (Motion, p. 2:2-9.)

Code of Civil Procedure section 2030.300, subdivision (a) permits a party to move for an order compelling further response on receipt of a response to interrogatories if (1) an answer to a particular interrogatory is evasive or incomplete, (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or (3) an objection to an interrogatory is without merit or too general.

Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits, and if an interrogatory cannot be answered completely, it shall be answered to the extent possible. (Code Civ. Proc., § 2023.220, subd. (a)-(b).) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party. (Code Civ. Proc., § 2023.220, subd. (a)-(b).)

At issue are special interrogatory numbers 30 through 44. (Separate Statement.) These interrogatories request, in part, information and descriptions related to separate personal injury, workers' compensation, and other personal injury claims filed by Plaintiff, including identification of treating physicians or providers, how the events occurred, a description of the

injuries sustained, and the status or disposition of other personal injury lawsuits. (Razo Decl., Ex. B.)

Plaintiff again responded only with objections and did not provide any further information or response to any of the interrogatories. (Razo Decl., Ex. D.)

Plaintiff argues this motion is moot and supplemental, substantive factual responses to Interrogatory Nos. 30-36 were provided on June 29, 2026. (Opp., p. 2:9-11.) Plaintiff objected to Interrogatory Nos. 37-44, which she contends violate the requirements of the Discovery Act, specifically Code of Civil Procedure section 2030.060, subdivision (f), which prohibits specially prepared interrogatories containing subparts or compound, conjunctive, or disjunctive questions. (Opp., p. 2:19-22.) Plaintiff's supplemental responses indicate that she stated she had no case number, case name, or court information for a lawsuit she previously initiated and identified in response to prior discovery, that she provided the case is currently pending, and that she is represented by Downtown LA Law Group, LLP in that case, which is the same law firm representing her in the present action. (Flores Decl., Ex. A.) Plaintiff also provides a brief description of the car accident, identifies the parts of her body that were injured in the accident but not the injuries sustained, and refers to her medical records provided in response to separately propounded discovery. (Id.) Plaintiff objects to Interrogatory Nos. 37-44 for violation of Code of Civil Procedure section 2030.060(f) for containing subparts. For example, the interrogatories read, in part:

SPECIAL INTERROGATORY NO. 37: In the last ten years, have YOU been involved in any other personal injury lawsuits, workers' compensation claims, or other claims for physical injury, other than the present lawsuit against Palmdale Regional Medical Center or the suit arising out of the car accident on 12/13/2024. If so, for each additional such claim or lawsuit, please state: a) The date of the incident giving rise to the claim or lawsuit; b) The nature of the injury claimed; c) The name of the person or entity against whom the claim or lawsuit was made; d) The court or forum in which any lawsuit was filed (if applicable), including the case name and case number; e) The current status or disposition of each claim or lawsuit (e.g., settled, dismissed, pending); f) The name and address of any attorneys who represented YOU in those matters.

SPECIAL INTERROGATORY NO. 40: Please identify all healthcare providers or facilities from whom YOU received treatment for any injury or condition claimed in the lawsuits or claims identified in response to Special Interrogatory No. 37, including: a) Name and address of each provider; b) Dates of treatment; c) The condition or injury for which treatment was sought.

SPECIAL INTERROGATORY NO. 41: Identify all incidents, prior to the subject September 18, 2023 incident, in which YOU slipped, tripped, fell, or otherwise sustained injury, including but not limited to the 2017 incident referenced in YOUR deposition. For each incident, state: (a) The date; (b) The location; (c) Description of how the incident occurred; (d) Injuries claimed; and (e) Identity of any witnesses.

On reply, Defendant argues that the June 29, 2026 supplemental responses provided have not cured every deficiency identified by Defendant, and specifically argues that Plaintiff has still failed to respond to Interrogatory Nos. 30 and 37-44. (Reply, p. 2:8-12.) Defendant notes that Plaintiff failed to disclose this prior slip and fall incident and lawsuit in her discovery responses served in May of 2025, and Defendant only learned of the prior incident during Plaintiff's deposition on March 5, 2026, which required a second set of discovery to learn additional information, which was served immediately after Plaintiff's deposition. (Reply, p. 2:12-20.)

Specifically, Defendant argues that even if the Court finds the form of the interrogatories to be impermissible as containing subparts, Plaintiff improperly conflates form of interrogatories with discoverability of information sought, the form of the interrogatories does not establish that the information sought is privileged, irrelevant, or immune from discovery, and Plaintiff provided no substantive information whatsoever concerning her prior or subsequent falls, injuries, claims, or medical treatment. (Reply, p. 3:6-15.) Defendant correctly notes that pursuant to Code of Civil Procedure section 2030.240, subdivision (a), if only part of an interrogatory is objectionable, such as subparts or compound requests, the remainder of the interrogatory still must be answered. (Reply, p. 3:12-15.)

Plaintiff's objections pursuant to Code of Civil Procedure section 2030.060, subdivision (f) are without merit.

In referring to the prohibition of “compound, conjunctive, or disjunctive” questions (§ 2030.060, subd. (f)), Weil and Brown point out that the “purpose again is to prevent questions worded so as to require more information than could be obtained by 35 separate questions. How strictly this rule will be applied remains to be seen. Arguably, any question containing an ‘and’ or ‘or’ is compound and conjunctive!” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, supra, ¶ 8:978.1, p. 8F-21.) They comment that “[t]he rule should probably apply only where more than a single subject is covered by the question. Questions regarding the same subject should be allowed although they include an ‘and’ or ‘or.’ For example: ‘State your first name, middle name and last name, and your current address and telephone number.’ Since only one subject is involved—identification of responding party—the question should not be objectionable because of the ‘ands’ used.” (Id., ¶ 8:979, p. 8F-21.)

(Clement v. Alegre, 177 Cal. App. 4th 1277, 1291.) Here, the subparts to which Plaintiff objects are not raising separate subjects. For example, Interrogatory No. 36 seeks the name and address of each provider, dates of treatment, and condition or injury for which treatment was sought for all healthcare providers or facilities from whom Plaintiff received treatment for any injury or condition claimed in the lawsuits or claims identified by Plaintiff. (Razo Decl., Ex. B.) This interrogatory raises one subject: identification of Plaintiff’s medical treatment for injuries claimed in separate lawsuits identified by Plaintiff. Interrogatory No. 37 raises one subject: identification of other personal injury lawsuits or other claims for physical injury Plaintiff has been involved in within the past ten years. Interrogatory No. 40 raises one subject: Plaintiff’s medical treatment for injuries claimed in prior lawsuits or claims identified in response to No. 37. Interrogatory No. 41 raises one subject: identification of all incidents prior to the incident underlying the present case in which Plaintiff tripped, slipped, fell, or sustained injury. Interrogatory No. 42 raises one subject: Plaintiff’s medical treatment for injuries claimed in prior lawsuits or claims identified in response to No. 41. The same is true for Interrogatories No. 43 and 44. That the information sought pertaining to this subject is broken down into a lettered list does not per se make these requests compound or improper.

Furthermore, Plaintiff’s contention that no case name, case number, or court or forum exists for a case that was filed by Plaintiff, represented by the same law firm and the same specific attorney, Gevork Gazaryan, representing her in the present case, for a lawsuit which Plaintiff testified to filing and which she identifies as currently pending is facially evasive and false. (Flores Decl., Ex. A, Special Interrogatory No. 30.) This information is clearly within Plaintiff’s and her counsel’s knowledge and possession or is readily obtainable. No justification is provided for failing to provide this information, nor is there any reasonable basis for Plaintiff’s assertion that such information does not exist.

Plaintiffs’ supplemental responses are incomplete, evasive, not code-compliant, and raise meritless objections. Accordingly, Defendant’s Motion is GRANTED. Plaintiff is to provide code-compliant complete, non-evasive responses to Special Interrogatories Nos. 30 and 37-44. The Court again admonishes Plaintiff and her counsel from raising meritless objections or providing incomplete, false responses to these requests.

e. Supplemental Pre-Trial Form Interrogatories

Defendant moves to compel Plaintiff’s further responses to the supplemental pre-trial form interrogatories served on March 18, 2026 pursuant to Code of Civil Procedure section 2030.300 on the grounds that Plaintiff, without justification, failed to serve proper responses. (Motion, p. 2:2-9.)

Code of Civil Procedure section 2030.070 states that in addition to interrogatories otherwise permitted, a party may propound a supplemental interrogatory once after the initial setting of a trial date to elicit any later acquired information bearing on answers previously made by a party in response to interrogatories. (Code Civ. Proc., § 2030.070, subd. (a)-(b).)

The supplemental request served on Plaintiff reads: “Please review your answers to interrogatories previously served on you in this action. If, for any reason, any answer is no longer correct and complete, identify the answer and state whatever information is necessary to make it correct and complete as of this date. You should supply all information known to you, whether in Plaintiff’s possession or in the possession of Plaintiff’s counsel or other agent.” (Razo Decl., Ex. B.)

Plaintiff’s response to the supplemental request reads: “Objection. Vague and ambiguous. Overbroad as to scope and time. Assumes facts not in evidence. Calls for speculation. Premature as Responding Party has not had an adequate opportunity

to conduct an investigation in this matter. Compound.” (Razo Decl., Ex. D.) No further response was provided.

Plaintiff again argues this motion is moot as she served substantive supplemental responses identifying prior Form Interrogatory responses requiring supplementation and providing updated information to render the responses current and complete on June 29, 2026, including updated information concerning Plaintiff’s residence, employment status, physical complaints, and healthcare providers and treatment. (Opp., p. 2:9-13.) The supplemental responses support Plaintiff’s contention that the supplemental information described in the motion was provided. (Flores Decl., Ex. A.)

On reply, Defendant argues that the June 29, 2026 supplemental responses provided have not cured every deficiency identified by Defendant, and specifically argues that Plaintiff’s responses remain non-code compliant and Interrogatory Nos. 2.5, 2.6, 10.3, and 11.1 remain incomplete. (Reply, p. 2:7-10.) Defendant notes that Plaintiff failed to disclose this prior slip and fall incident and lawsuit in her discovery responses served in May of 2025, and Defendant only learned of the prior incident during Plaintiff’s deposition on March 5, 2026, which required a second set of discovery to learn additional information, which was served immediately after Plaintiff’s deposition. (Reply, p. 2:11-19.)

Defendant notes the following deficiencies: (1) No. 2.5 is incomplete because the request seeks information for addresses for the past five years, and Plaintiff only included responses from 2024 onward, (2) No. 2.6 does not provide Plaintiff’s employer information for the five years preceding the incident, and (3) Plaintiff failed to supplement her responses to Nos. 10.3 and 11.1, the initial responses to which completely omitted any mention or disclosure of her 2017 slip and fall incident and subsequent lawsuit against Winco and objects without justification. (Reply, p. 3:2-13.)

The Court finds that Plaintiff’s responses to Interrogatory Nos. 2.5 and 2.6 are incomplete and do not provide complete information for the delineated time period. The Court also finds that in light of Plaintiff’s admission under oath that she filed a lawsuit for a slip and fall case for injuries sustained in 2017, and because Plaintiff entirely omitted this action from her initial discovery response to Form Interrogatory No. 11.1, which seeks specific information for any action or claim for compensation for personal injuries within the past 10 years, Plaintiff is required to supplement this response with the requested information. However, the Court notes that Interrogatory No. 10.3 is directed to injuries sustained after the subject incident, and it does not appear that any information related to Plaintiff’s omitted slip and fall incident from 2017 is responsive to this request.

Accordingly, Defendant’s motion is GRANTED as to Nos. 2.5, 2.6, and 11.1. Plaintiff shall provide supplemental, code-compliant, and non-evasive responses to these requests. To the extent that Defendant seeks supplemental production of documents related to Form Interrogatory No. 11.1, Plaintiff shall produce documentation in accordance with her amended supplemental response related to her 2017 slip and fall injury.

f. Sanctions

Defendant requests sanctions in the amount of \$1,240 for each of the five motions, consisting of \$1,180 for attorneys fees for 4 hours spent preparing and arguing each motion at \$295 per hour and \$60 in filing costs per motion. “The court shall impose monetary sanctions ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response ..., unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Plaintiff objects on the ground that supplemental responses were provided on June 29, 2026, that the relief sought has already been obtained by Defendant, and the request for sanctions is moot. For the reasons stated above, the Court does not find that Plaintiff’s supplemental responses were complete, code-compliant, non-evasive, or properly objected to. Furthermore, even where a party provides untimely responses after a motion to compel has been filed, the Court may still award monetary sanctions. (Cal. Rules of Court, rule 3.1348(a) [“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed.”].)

All five of Defendant's motions are, at least in part, granted. Plaintiff's initial discovery responses were entirely non-compliant, evasive, and deficient. Plaintiff received multiple extensions for providing supplemental responses after repeated meet and confer attempts initiated by Defense counsel, and provided insufficient and evasive supplemental responses only after Defendant filed five separate motions to compel the responses. While Plaintiff asserts that she agreed to supplement her responses and ultimately did so, the Court does not find that this renders monetary sanctions unjust under the circumstances. Plaintiff unsuccessfully opposed all five motions, and the Court does not find that she had substantial justification for doing so. Plaintiff also does not object to the reasonableness of fees and costs requested.

Accordingly, Defendant's requests for monetary sanctions for all five motions are GRANTED. Because there is some repetition per motion, the Court reduces the total hours sought by five hours (one hour per motion) or \$1475. Monetary sanctions are awarded against Plaintiff and her counsel in the amount of \$4,725.

V. Conclusion

Defendant Lancaster Hospital Corporation's Motions to Compel Further Discovery Responses to Special Interrogatories, Set Two, Requests for Production, Set Two, Supplemental Pre-Trial Request for Production, Supplemental Pre-Trial Form Interrogatories, and Supplemental Pre-Trial Special Interrogatories are GRANTED.

Defendant Lancaster Hospital Corporation's Requests for Monetary Sanctions are GRANTED. Monetary sanctions are awarded against Plaintiff and her counsel in the amount of \$4,725. Plaintiff and/or Plaintiff's counsel shall remit payment in full to Defense counsel within 30 days of this Order, subject to extension on written agreement of the parties.